

(Appellate Jurisdiction)

Mr. Justice Salahuddin Panhwar
Mr. Justice Miangul Hassan Aurangzeb

(On appeal against the judgment dated 24.02.2025 passed by the Peshawar High Court, Abbottabad Bench in FAO No.01-A/2025)

Versus

Syed Wali Shah and others ... Respondents

Date of hearing : 17.10.2025

Salahuddin Panhwar, J. - This Civil Petition under Article 185(3) of the Constitution seeks leave to appeal against the judgment dated 24.02.2025 passed by the Peshawar High Court, Abbottabad Bench in FAO No. 01-A/2025, whereby the objection petition filed by the department as judgment-debtor in execution was dismissed and the Executing Court's order was affirmed.

2. The case arises out of acquisition of land belonging to the respondents, including the late Farid Shah, for defence purposes under Award No. 176. Dissatisfied with compensation, references were made under sections 18 and 30 of the Land Acquisition Act, 1894. The Reference Court enhanced compensation on 30.03.2013 and, on appeal, the enhancement was upheld by the Peshawar High Court on 22.10.2014. In the ensuing execution, the Executing Court, after verifying the goshwaras and relevant revenue documents, including naqsha-e-tajwizi and the acquaintance roll, and by reference to khana-e-malkiat and khana-e-kasht, found Farid Shah's

name in the relevant records and rejected the judgment-debtors' objections by order dated 07.01.2025. FAO No. 01-A/2025 thereagainst was dismissed by the High Court on 24.02.2025. The present civil petition calls in question the last-mentioned judgment.

3. The petitioner's principal contention is that, being a government entity, it was exempt from deposit when filing objections in execution by virtue of Order XXVII rule 8-A of the Code of Civil Procedure, 1908 (CPC). The submission misconceives the scheme of the Code. Order XXI rule 23-A CPC squarely governs objections by a judgment-debtor in execution and stipulates a jurisdictional precondition that, in the case of a money decree, the judgment-debtor must either deposit the decretal amount in court or furnish security for its payment, and in the case of any other decree must furnish security for due performance. Unless that condition is met, the court shall not consider the objection. The petitioner did not deposit the decretal amount nor did it furnish security. The Executing Court and the High Court were therefore correct to treat the objections as not maintainable.

4. Order XXVII rule 8-A CPC has a different office. It concerns exemption from furnishing security in specified situations where Government or a public officer is a party, tied to stays in appellate proceedings under Order XLI rules 5 and 6 CPC. It does not override, qualify or dilute the mandatory precondition in execution envisaged by Order XXI rule 23-A CPC. The High Court rightly rejected reliance on Order XXVII rule 8-A at the execution stage under section 47 CPC.

5. The authorities cited by the High Court support this approach. In ***Najm Qureshi v Chase Manhattan Bank (now MCB) (2015 SCMR 1461)***, this Court underscored that the expression "decretal amount" in execution presupposes an ascertained or readily ascertainable sum and that the judgment-debtor must deposit or secure such amount to raise objections. In ***Muhammad Sadiq v WAPDA (PLD 2003 SC 290)***, it was held that deposit in court of money payable under a decree entitles a judgment-debtor to relief in respect of further interest, which presupposes that the amount is ascertained. In ***Happy Family Associates v Pakistan International Trading Co. (PLD 2006 SC 226)***, objections to execution were found incompetent for failure to comply with Order XXI rule 23-A CPC. In ***Nadeem Akhtar Tabasum v MCB (2014 SCMR 1371)***, the Court declined to entertain attempts to frustrate satisfaction of a decree and enforced compliance with procedural requirements. Read together, these decisions reinforce the

mandatory character of the deposit or security requirement and the limited tolerance for dilatory objections.

6. Execution questions arising between the parties as to discharge or satisfaction of the decree lie before the Executing Court under section 47 CPC. Here, that court exercised its jurisdiction, tested ownership and entitlement on the revenue record, and rejected the objections. Those concurrent findings, affirmed by the High Court, disclose no misreading or non-reading of material, no jurisdictional defect, and no perversity occasioning miscarriage of justice to warrant interference in leave jurisdiction under Article 185(3). For completeness, while deposits in land acquisition matters are contemplated by section 31 of the Land Acquisition Act, 1894 in specified circumstances, the immediate bar to entertaining the petitioner's objections flows from Order XXI rule 23-A CPC. Without deposit of the decretal amount or furnishing security, the objections could not be considered.

7. No illegality has been pointed out in the impugned judgment warranting interference by this Court. Leave is declined and the petition is dismissed. These are our detailed reasons for our short order dated 17.10.2025, which reads:

"For reasons to be recorded later on, leave is declined, and petition is dismissed."

Judge

Judge

Islamabad

17.10.2025

Muhammad Subhan Malik (JLC)/-

Approved for Reporting